

allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

The futility doctrine relied on by Stillwater has typically been applied to deny a motion for leave to amend where, for example, the claim is clearly barred by a failure to exhaust administrative remedies or is clearly barred by the statute of limitations. (See, e.g., *California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281, disapproved on other grounds in *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390 [granting petition for writ of mandate and reversing trial court's denial of leave to amend answer to add novel affirmative defense]; *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230 [proposed amendment barred by statute of limitations and no basis for "relation back"]; *Royalty Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal.App.4th 1110, 1124 [denial of leave to amend petition for writ of mandate affirmed because amended claim barred by statute of limitations].)

No trial date is set in the case, and discovery is ongoing. A continued case management conference is set for January 13, 2026, and there are a series of discovery motions scheduled in June 2026. Stillwater has not shown prejudice if the amended complaint is allowed to be filed, other than having to attempt to defeat the amended claims on the merits. Stillwater will have the opportunity to challenge the merits of amended claim by means other than opposition to this motion. Given the liberal policy of allowing amendment of pleadings, and the lack of a showing of prejudice, the Court will follow the "preferable practice" and not test the legal merit of the FAC on this motion.

18. 9:00 AM CASE NUMBER: MSC21-00636
CASE NAME: THUAT TON-HARMON VS. FPI MANAGEMENT, INC.
***HEARING ON MOTION IN RE: SET TRIAL DATE**
FILED BY: TON-HARMON, THUAT
TENTATIVE RULING:

Appearance required.

19. 9:00 AM CASE NUMBER: N25-1806
CASE NAME:
***HEARING ON MINOR'S COMPROMISE PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS FILED ON 9-10-25 BY NOAH BINSOL**
FILED BY:
TENTATIVE RULING:

The petition for minor's compromise is approved.

20. 9:01 AM CASE NUMBER: C23-01991
CASE NAME: VERA ASH VS. BAY AREA SURGICAL SPECIALISTS LLC
*HEARING ON MOTION FOR DISCOVERY HAVE FACTS DEEMED ADMITTED
FILED BY: EPIC CARE
TENTATIVE RULING:

Vacated.

21. 9:01 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPPIE VS. MISTY LEONE
*HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE
RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS
FILED BY: LEONE, MISTY
TENTATIVE RULING:

Hearing continued to January 12, 2026, at 9:00 a.m. in Department 34.

22. 9:01 AM CASE NUMBER: C23-00896
CASE NAME: JULIAN MIJARES VS. BRENTWOOD UNION SCHOOL DISTRICT
*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS
FILED BY: BRENTWOOD UNION SCHOOL DISTRICT
TENTATIVE RULING:

This discovery motion is referred to the appointed discovery referee, Jay Chafetz.

Law & Motion
Add On

9:01 AM CASE NUMBER: C22-01835
CASE NAME: MICHAELA STRAZNICKA VS. REYNA HIGUERA
*HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF MICHAELA STRAZNICKA'S FURTHER
RESPONSES TO SPECIAL INTERROGATORIES, SET 4
FILED BY: